

September 8, 2016



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16620

EXPIRATION DATE: May 31, 2018

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Westeel Canada Inc.
Winnipeg, Canada

US AGENT: Westfield Distributing (North Dakota) Inc.
Boone, IA

2. PURPOSE AND LIMITATIONS:

a. This special permit authorizes the manufacture, mark, sale and use of non-DOT specification metal Intermediate Bulk Containers for the transportation in commerce of certain Class 3 hazardous materials. Additionally, the Class 3 hazardous materials will be discharged from the IBCs without removing the IBCs from the motor vehicle on which they are transported. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(h) in that discharge of contents of an IBC must not be made prior to removal from the motor vehicle, § 178.705(d) in that

September 8, 2016

metal IBCs may not have a volumetric capacity less than 450 L (119 gallons) and § 178.819 in that the IBC must be placed on a vibrating platform with a vertical displacement of one inch and free to move vertically and bounce, except as specified herein.

5. BASIS: This special permit is based on the application of Westeel Canada Inc. dated December 29, 2015, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Diesel fuel	3	NA1993	III
Diesel fuel	3	UN1202	III
Ethanol or Ethyl alcohol or Ethanol solutions or Ethyl alcohol solutions	3	UN1170	II or III
Fuel, aviation, turbine engine	3	UN1863	II or III
Gasoline	3	UN1203	II
Kerosene	3	UN1223	III
Methanol	3	UN1230	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The prescribed packagings are non-DOT specification metal Intermediate Bulk Containers (IBCs) used for refueling applications, are constructed of steel and conform to all the requirements of a UN31A IBC with the exception that two designs, RV-285 and RV-290, have a water capacity less than 450 L (119 gallons). IBCs RV-285, RV-290, RV-450, RV-545, RV-680 and RV-830 have a capacity ranging from 285 L to 830 L and have their respective drawings and specifications on file with the Office of Hazardous Materials Safety Approvals and Permits Division.

September 8, 2016

b. TESTING - Each IBC design type must meet the testing and certification requirements specified in § 178.803 for metal IBCs, with the exception that the vibration test must be accomplished in accordance with paragraph 7.b.(1) of this special permit. Additionally, each IBC design type must be subjected to the rollover test as specified in paragraph 7.b.(2) of this special permit. Each IBC must be periodically retested every 2.5 years in accordance with the requirements of § 180.352.

(1) The vibration test must be accomplished in accordance with ASTM D999-96 Method B, and must be completed using the manufacturer's supplied tie down components, allowable pump or comparable representative pump and isolation valve.

(2) The rollover test must be accomplished as follows:

(i) The IBC must be mounted to the test frame using the manufacturer's supplied tie down components, allowable pump or comparable representative pump and isolation valve.

(ii) The frame must extend a minimum of 300 mm (11.81 in) from the side of the IBC in the rolling direction.

(iii) The IBC must be completely filled with water, and all fill caps and plugs must be installed.

(iv) The frame must be lifted to the tipping point, and the IBC must be allowed to roll free.

(v) There may be no separation between the test frame and the IBC bottom, and release of contents may not exceed four liters.

c. OPERATIONAL CONTROLS -

(1) IBCs must be attended at all times during loading and unloading operations by a qualified person. For the purposes of this requirement, "attended" and "qualified" must have the meanings described in § 177.834(i)(3) and (4), respectively.

(2) IBCs may not be manifolded together.

September 8, 2016

(3) Pumps and hoses may be attached to discharge outlet during transportation if:

(i) The IBC is secured using the manufacturer's supplied tie down method;

(ii) An isolation valve is installed between the pump and the IBC. The valve must be in the closed position during transportation;

(iii) The highest points of the attached pump, hoses and IBC remain below the "safe zone" line. The "safe zone" line is defined as a line from five inches below the roof of the vehicle to the top of the vehicle's tailgate. If the highest points are above the "safe zone" line, a manufacturer supplied roll guard, which must have a peak height higher than the IBC and pump assembly, must be installed for pump protection. The pump model to be used in this case must be provided or specified by the manufacturer in order to ensure suitable protection is provided by the roll guard;

(iv) The pump hose and nozzle are locked to the pump using a keyed or combination lock during transportation;

(v) The operator has emptied the contents of the hose by inverting the polarity of the attached pump and pumping from the hose into the IBC for a minimum of 15 seconds; and

(vi) Electrical power must be disconnected from the pump during transportation.

(4) Each IBC must be marked and placarded in accordance with the requirements for IBCs.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

September 8, 2016

- b. A person who is not a holder of this special permit, but receives a package covered by this special permit, may reoffer it for transportation provided no modification or change is made to the package and it is offered for transportation in conformance with this special permit and the HMR.
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Special Permits and Approvals for a specific manufacturing facility.
- e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs

September 8, 2016

a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)–“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 – Immediate notice of certain hazardous materials incidents, and 171.16 – Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit

September 8, 2016

are permitted. Any alteration of this special permit is prohibited.

PO: Victor Casillas